

Example of a photography and filming policy statement

July 2021

This is an example of one of the documents organisations need to ensure safeguarding is at the heart of their activities.

Use this example to write a document that reflects the safeguarding needs of the children and young people your organisation works with and aligns with your other key safeguarding and organisational policies, procedures and standards.

The purpose and scope of this policy statement

[Name of group/organisation] works with children and families as part of its activities. These include: [insert brief outline of what your organisation does with children and families].

The purpose of this policy statement is to:

- protect children and young people who take part in [name of group/organisation]'s services, events and activities, specifically those where photographs and videos may be taken
- set out the overarching principles that guide our approach to photographs/videos being taken of children and young people during our events and activities
- to ensure that we operate in line with our values and within the law when creating, using and sharing images of children and young people.

This policy statement applies to all staff, volunteers and other adults associated with [name of group/organisation].

Legal framework

This policy has been drawn up on the basis of legislation, policy and guidance that seeks to protect children in England/Northern Ireland/Scotland/Wales [select the relevant nation]. Summaries of key legislation and guidance is available on NSPCC Learning:

- **Online abuse legislation and guidance**
- **Child protection legislation and guidance**

We believe that:

- children and young people should never experience abuse of any kind
- we have a responsibility to promote the welfare of all children and young people and to take, share and use images of children safely.

We recognise that:

- sharing photographs and films of our activities can help us celebrate the successes and achievements of our children and young people, provide a record of our activities and raise awareness of our organisation
- the welfare of the children and young people taking part in our activities is paramount
- children, their parents and carers have a right to decide whether their images are taken and how these may be used, regardless of age, disability, gender reassignment, race, religion or belief, sex or sexual orientation
- consent to take images of children is only meaningful when children, their parents and carers understand how the images will be used and stored, and are fully aware of the potential risks associated with the use and distribution of these images
- there are potential risks associated with sharing images of children online.

- **Find out more on NSPCC Learning**

We will seek to keep children and young people safe by:

- always asking for written consent from a child and their parents or carers before taking and using a child's image
- always explaining what images will be used for, how they will be stored and what potential risks are associated with sharing images of children
- making it clear that if a child or their family withdraw consent for an image to be shared, it may not be possible to delete images that have already been shared or published
- changing the names of children whose images are being used in our published material whenever possible (and only using first names if we do need to identify them)
- never publishing personal information about individual children and disguising any identifying information (for example the name of their school or a school uniform with a logo)
- making sure children, their parents and carers understand how images of children will be securely stored and for how long (including how we will control access to the images and their associated information)
- reducing the risk of images being copied and used inappropriately by:
- only using images of children in appropriate clothing (including safety wear if necessary)
- avoiding full face and body shots of children taking part in activities such as swimming where there may be a heightened risk of images being misused
- using images that positively reflect young people's involvement in the activity.

We will also develop a procedure for reporting the abuse or misuse of images of children as part of our child protection procedures. We will ensure everyone involved in our organisation knows the procedures to follow to keep children safe.

Photography and/or filming for personal use

When children themselves, parents, carers or spectators are taking photographs or filming at our events and the images are for personal use, we will publish guidance about image sharing in the event programmes and/or announce details of our photography policy before the start of the event. This includes:

- reminding parents, carers and children that they need to give consent for [name of group/organisation] to take and use their images
- asking for photos taken during the event not to be shared on social media or asking people to gain permission from children, their parents and carers before sharing photographs and videos that include them
- recommending that people check the privacy settings of their social media account to understand who else will be able to view any images they share
- reminding children, parents and carers who they can talk to if they have any concerns about images being shared.

Photography and/or filming for [name of group/organisation]'s use

We recognise that our group leaders may use photography and filming as an aid in activities such as music or drama. However, this should only be done with [name of group/organisation]'s permission and using our equipment.

Children, young people, parents and carers must also be made aware that photography and filming is part of the programme and give written consent.

If we hire a photographer for one of our events, we will seek to keep children and young people safe by:

- providing the photographer with a clear brief about appropriate content and behaviour
- ensuring the photographer wears identification at all times
- informing children, their parents and carers that a photographer will be at the event and ensuring they give written consent to images which feature their child being taken and shared
- not allowing the photographer to have unsupervised access to children
- not allowing the photographer to carry out sessions outside the event or at a child's home
- reporting concerns regarding inappropriate or intrusive photography following our child protection procedures.

Photography and/or filming for wider use

If people such as local journalists, professional photographers (not hired by [name of group/organisation]) or students wish to record one of our events and share the images professionally or in the wider world, they should seek permission in advance.

They should provide:

- the name and address of the person using the camera
- the names of children they wish to take images of (if possible)
- the reason for taking the images and/or what the images will be used for
- a signed declaration that the information provided is valid and that the images will only be used for the reasons given.

[Name of group/organisation] will verify these details and decide whether to grant permission for photographs/films to be taken. We will seek consent from the children who are the intended subjects of the images and their parents and inform the photographer of anyone who does not give consent.

At the event we will inform children, parents and carers that an external photographer is present and ensure the photographer is easily identifiable, for example by issuing them with a coloured identification badge.

If [name of group/organisation] is concerned that someone unknown to us is using their sessions for photography or filming purposes, we will ask them to leave and (depending on the nature of the concerns) follow our child protection procedures.

If consent to take photographs is not given

If children, parents and/or carers do not consent to photographs being taken, we will respect their wishes. We will agree in advance how they would like to be identified so the photographer knows not to take pictures of them, and ensure this is done in a way that does not single out the child or make them feel isolated.

We will never exclude a child from an activity because we do not have consent to take their photograph.

Storing images

We will store photographs and videos of children securely, in accordance with our safeguarding policy and data protection law.

We will keep hard copies of images in a locked drawer and electronic images in a protected folder with restricted access. Images will be stored for a period of _____ [number of months/years].

We will never store images of children on unencrypted portable equipment such as laptops, memory sticks and mobile phones.

[Name of group/organisation] does not permit staff and volunteers to using any personal equipment to take photos and recordings of children. Only cameras or devices belonging to the [group/organisation] should be used.

[Organisations that store and use photographs to identify children and adults for official purposes, such as identity cards, should ensure they are complying with the legal requirements for handling personal information. Further guidance can be found from the [Information Commissioner's Office](#)].

Related policies and procedures

This policy statement should be read alongside our organisational policies and procedures, including:

- Safeguarding and child protection policy and procedures.
- Code of conduct for staff and volunteers.
- Online safety policy and procedures for responding to concerns about online abuse.

➤ **Find out more about what your policies and procedures should include**

Contact details

Photography and images co-ordinator

Name:

Phone/email:

Senior lead for safeguarding and child protection

Name:

Phone/email:

NSPCC helpline

0808 800 5000

We are committed to reviewing our policy and good practice annually.

This policy was implemented on:(date)

This policy was last reviewed on:(date)

Signed:

[this should be signed by the most senior person with responsibility for safeguarding in your organisation, for example the safeguarding lead on your board of trustees].

Date:

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